

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 9/23/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0009809

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: KORY JACK KINDT vs. DEFENDANT: CITY OF NOVATO, A PUBLIC ENTITY	
---	--

NATURE OF PROCEEDINGS: DEMURRER

RULING

Defendant City of Novato’s demurrer to Plaintiff’s negligence and false arrest causes of action are sustained with leave to amend.

Allegations in the First Amended Complaint

Plaintiff Kory Jack Kindt alleges that beginning in 2025, he repeatedly contacted emergency personnel at Defendant City of Novato (the “City”) seeking assistance regarding thefts, break-ins, trespassing, and safety concerns. The City warned Plaintiff not to repeatedly contact emergency services. On March 5, 2025, portions of Plaintiff’s residence were “breached” and there was fiberglass debris, insulation materials and dust contamination in the residence, causing him emotional distress and physical harm. His repeated requests for assistance were inadequately addressed or ignored. Plaintiff experienced involuntary detentions and psychiatric evaluations and was arrested in August 2025. Plaintiff asserts causes of action that are labelled negligence, property damage, and personal injury/emotional distress.

Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law, and it raises only a question of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “ordinarily is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th

1076, 1099 [citation and internal quotations omitted].) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe*, 42 Cal.4th at 551, fn. 5.) The court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Request for Judicial Notice

The City’s request for judicial notice of Plaintiff’s first Government Tort Claim marked as received July 23, 2025 (Exhibit A), the City’s written Notice of Rejection of Claim dated August 19, 2025 (Exhibit B), Plaintiff’s second Government Tort Claim marked as received on September 23, 2025 (Exhibit C), the City’s Notice of Rejection of Claim dated October 21, 2025 (Exhibit D), Plaintiff’s third Government Tort Claim marked as received on October 21, 2025 (Exhibit E), the City’s Notice of Rejection of Claim dated November 25, 2025 (Exhibit F), Plaintiff’s initial Complaint filed on April 17, 2026 (Exhibit G), and Plaintiff’s First Amended Complaint filed on May 19, 2026 (Exhibit H), is granted. (Evid. Code §§ 452, 453.)

Whether Plaintiff’s Negligence and False Arrest Causes of Action are Adequately Supported by Timely Government Claims

The City notes that despite the labels used, Plaintiff’s First Amended Complaint only alleges two possible causes of action: negligence and false arrest. Plaintiff does not dispute this characterization. (See Opp., p. 2 [“the FAC pleads two independent causes of action – negligence and false arrest”].)

Plaintiff’s First Claim: Timeliness

The City argues that to the extent Plaintiff’s claims are based on the March 5, 2025 incident, they are time-barred. An action for which a claim is required to be presented must be commenced no later than six months after the date a written notice of rejection is deposited in the mail. (Govt. Code § 945.6(a)(1); see *County of Los Angeles v. Superior Court* (2005) 127 Cal.App.4th 1263, 1270-71.) The City contends that it deposited the first Notice of Rejection of Claim in the mail on August 19, 2025, and Plaintiff did not file his original Complaint until over six months later on April 17, 2026.

While a court can take a judicial notice of a city’s notice of rejection of claim as an official act of a government entity, it cannot take judicial notice of the date it was deposited in the mail if there is a factual dispute over that date. (See *Cruz v. County of Los Angeles* (1985) 173 Cal.App.3d 1131, 1134-1135.) Here, Plaintiff does not dispute that the notice was deposited in the mail on August 19, 2025 and, in fact, does not dispute that “any claim arising solely from the March 5, 2025 property-damage incident, to the extent it is not also encompassed within [his two subsequent claims] is time-barred under this calculation.” (Opp., p. 4.) The Court will

therefore take judicial notice of the date of mailing under Evidence Code Section 452(h) because Plaintiff has indicated the date is not reasonably subject to dispute.

The Court agrees that to the extent Plaintiff's claims are based on the March 5, 2025 date, they are time-barred. However, because Plaintiff's claims are based on additional allegations and events that may support a cause of action, and because Plaintiff submitted two additional notices of claim, the Court does not sustain the demurrer based solely on the City's argument regarding timeliness and the March 5th event. (See *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119 ["A demurrer must dispose of an entire cause of action to be sustained"].)

Plaintiff's Second and Third Claims: Whether Claims Fairly Describe the Factual Basis

The City argues that Plaintiff's causes of action fail due to a fatal variance from Plaintiff's Second (September 2025) and Third (October 2025) Claims.

"[N]o suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented in accordance with . . . Section 910 . . . until a written claim therefore has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board" (Govt. Code § 945.4.) This claim must include "[a] general description of the indebtedness, obligation, injury, damage or loss incurred so far as it may be known at the time of presentation of the claim." (Gov. Code § 910(d).) "A claim served on a governmental entity must fairly describe what that entity is alleged to have done. A theory of recovery not included in the claim may not thereafter be maintained. However, while the circumstances described in a claim must substantially correspond with the causes of action pled, the claim need not conform to pleading standards. The primary function of the [Government Tort Claims Act] is to apprise the governmental body of imminent legal action so that it may investigate and evaluate the claim and where appropriate, avoid litigation by settling meritorious claims. [Citations.]" (*Shoemaker v. Myers* (1992) 2 Cal.App.4th 1407, 1426 [citations and internal quotations omitted].)

"[E]ven if the claim were timely, the complaint is vulnerable to a demurrer if it alleges a factual basis for recovery which is not fairly reflected in the written claim. The claim, however, need not specify each particular act or omission later proven to have caused the injury. A complaint's fuller exposition of the factual basis beyond that given in the claim is not fatal, so long as the complaint is not based on an entirely different set of facts. Only where there has been a complete shift in allegations, usually involving an effort to premise civil liability on acts or omissions committed at different times or by different persons than those described in the claim, have courts generally found the complaint barred. Where the complaint merely elaborates or adds further detail to a claim, but is predicated on the same fundamental actions or failures to act by the defendants, courts have generally found the claim fairly reflects the facts pled in the

complaint.” (*Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal.4th 441, 447 [citations and internal quotations omitted].)

Plaintiff’s Second Claim focused on an incident on April 8, 2025 involving a complaint by Plaintiff’s neighbor that he had threatened her with a firearm and the City’s detention of Plaintiff following that incident. (RJN Exh. C.) The Second Claim included a “Supplemental Information Sheet” that stated that “[t]he claim arises from a false arrest and unlawful detention that occurred on April 8, 2025, and was formally recorded on July 7, 2025.” Plaintiff further stated: “On April 8, 2025, a neighbor of Mr. Kindt contacted the Novato Police Department alleging that Mr. Kindt had threatened her with a firearm. She presented Ring camera footage from her front door. Officers arrived promptly and, after viewing the video for only a few minutes, made the decision to detain Mr. Kindt. No thorough investigation was conducted. Officers did not interview Mr. Kindt, verify the nature of the object allegedly involved, or seek corroborating evidence. Mr. Kindt was accused of ‘Drawing/Exhibiting an Imitation Firearm in a Threatening Manner’ and ‘Threats of Violence.’ He was processed as if formally arrested, resulting in a \$50,000 bail. Mr. Kindt paid \$5,000 to secure release. The District Attorney later dropped all charges, confirming the absence of probable cause. On July 7, 2025, Mr. Kindt’s arrest record reflected duplicate entries for the same charges, attributed to both the Novato Police Department and the Mann County Sheriff’s Department. This duplication indicates procedural confusion and lack of coordination between agencies, further supporting the claim of false arrest and negligent investigation.”

Plaintiff’s Third Claim described Plaintiff’s claim as “fail to act, negligence” and identified the date as July 5, 2025 with related events beginning April 8, 2025. The location was identified as outside Plaintiff’s residence and surrounding area. Plaintiff discussed the March 5, 2025 and April 8/July 7, 2025 incidents and also included a cover letter in which Plaintiff stated that “the negligent handling of certain critical incidents — culminating in the events March 5, 2025 and July 07, 2025 has resulted in trauma, property loss, and ongoing emotional distress. Over the course of these events, I have endured: • Repeated invasions of my home by a dangerous individual, Mathew Abraha, over several months, including theft of personal identification, debit cards, valuables, and irreplaceable personal effects. • Structural and property damage during the police response necessary to extract the suspect safely. • Profound emotional trauma, compounded by my ongoing efforts to recover from alcohol dependence and maintain personal stability.” Plaintiff also submitted a “timeline of incidents & failures to act” which included allegations that there was minimal response and follow up after Plaintiff requested assistance for events that occurred on April 16, 2013, June 26, 2021, September 4, 2022, January 21, 2023, January 25, 2023 and March 27, 2023.

Discussion

The Court focuses on Plaintiff's Second and Third Claims, as Plaintiff's initial Complaint was untimely as to the First Claim.

False Arrest Cause of Action

The Second Claim presents sufficient information to support Plaintiff's false arrest cause of action as to the arrest that occurred after the neighbor's complaint of being threatened with a firearm.¹ Plaintiff alleges in his First Amended Complaint that he was arrested and detained in August 2025, that he denies unlawfully threatening or assaulting any person with a firearm, and that the arrest and detention lacked proper factual basis. (First Amended Complaint ("FAC"), ¶¶21, 22.) Plaintiff explains in his Opposition that the August 2025 arrest date alleged in his First Amended Complaint was erroneously included and that the arrest actually occurred at the time of the incident on April 8, 2025, as stated in his Second Claim. (Opp. p. 11.) The Court will allow Plaintiff to amend his Complaint to reflect the correct date of the arrest. The Second Claim provided sufficient detail of the April 8th arrest to put the City on notice of Plaintiff's claim. The demurrer is therefore not sustained on this basis.

Negligence

In his Opposition, Plaintiff concedes that the Second Claim is insufficient to support his negligence cause of action. Specifically, Plaintiff states: "The City's variance argument has more force as to Claim 2, which described an April 8, 2025 incident in which officers responded to a neighbor's report and arrested Plaintiff, rather than an incident in which officers failed to respond to Plaintiff's own call. Plaintiff does not ask the Court to stretch Claim 2 to cover a negligence theory it does not support. But Claim 2 independently and adequately presents the false-arrest and inadequate investigation theory" (Opp. at p. 7.)

The City argues that the Third Claim is also insufficient to support Plaintiff's negligence cause of action because the Third Claim's alleged incidents from April 16, 2013 to March 27,

¹ The Third Claim is untimely as to the April 8, 2025 arrest. Plaintiff was required to file a government claim within six months after the accrual of the cause of action. (Gov. Code § 911.2(a); *Ridley v. City and County of San Francisco* (1969) 272 Cal.App.2d 290, 292-293.) A false arrest cause of action accrues upon the date of the arrest. (See *Mohlmann v. City of Burbank* (1986) 179 Cal.App.3d 1037 n. 1; *McMahon v. Albany Unified School Dist.* (2002) 104 Cal.App.4th 1275, 1292.) Therefore, to be timely, Plaintiff's claim would have to be filed no later than October 8, 2025. Exhibit E to the City's request for judicial notice reflects that Plaintiff submitted his claim on October 21, 2025 – something that Plaintiff does not dispute. Indeed, with respect to the false arrest cause of action, Plaintiff argues only that it is supported by the Second Claim. (See Opp. at pp. 9-10.)

2023 are factually and temporally distinct from the First Amended Complaint's allegations regarding 2025 or later incidents. The City is correct on this point, as Plaintiff alleges in the First Amended Complaint that "Beginning in or around 2025 and continuing thereafter, Plaintiff repeatedly contacted law enforcement, emergency personnel, housing representatives, and related agencies seeking assistance, protection, intervention, and investigation relating to dangerous conditions, break-ins, thefts, trespassing incidents, property damage, safety concerns, and ongoing disturbances occurring at or near Plaintiff's residence." (FAC, ¶8.) The City is also correct that any claim filed in 2025 would be untimely as to those earlier events under Section 911.2.

The demurrer to this cause of action is sustained, as Plaintiff does not identify any incidents that were alleged in the Third Claim that occurred in 2025 other than the March 5th incident and the April 8th arrest/July 7th discovery. Plaintiff includes broad language in the Third Claim that could potentially include additional 2025 events; he is granted leave to include those events in his Complaint to the extent those underlying events would not make the Third Claim untimely. (See note 1.)

Duty of Care (Negligence Cause of Action)

The demurrer to the negligence cause of action is sustained on the additional ground that Plaintiff fails to allege a duty of care for the alleged failure to respond. "Neither a public entity nor a public employee is liable for failure to establish a police department or otherwise to provide police protection service or, if police protection service is provided, for failure to provide sufficient police protection service" (Gov. Code § 845.) "Police routinely respond to emergencies, but they do not have a 'legal duty' to do so . . . an officer's failure to respond to a request for assistance will not result in tort liability for the officer even if a member of the public is injured by the officer's failure to act, i.e., his or her nonfeasance." (*Camp v. State of California* (2010) 184 Cal.App.4th 967, 970.) "The general rule is that, 'one has no duty to come to the aid of another. A person who has not created a peril is not liable in tort merely for failure to take affirmative action to assist or protect another unless there is some relationship between them which gives rise to a duty to act.' A police officer, paramedic or other public safety worker is as much entitled to the benefit of this general rule as anyone else." (*Id.* at p. 975 [citation omitted].) "California courts have found no duty of care and have denied recovery 'for injuries caused by the failure of police personnel to respond to requests for assistance, the failure to investigate properly, or the failure to investigate at all, where the police had not induced reliance on a promise, express or implied, that they would provide protection.'" (*Ibid.* [citations omitted].)

"A duty of care may arise where the evidence demonstrates the requisite factors to a finding of a special relationship, namely detrimental reliance by the plaintiff on the officers' conduct, [or on] statements made by them which induced a false sense of security and thereby

Page 6 of 8

worsened [the plaintiff's] position. A special relationship is not established simply because police responded to a call for assistance and took some action at the scene. Nor is it enough to assert that the law enforcements took control of the situation. Instead, special relationships have been found only in a limited class of unique cases involving police officers who made misrepresentations that induced a citizen's detrimental reliance [citations], placed a citizen in harm's way [citations], or lulled a citizen into a false sense of security and then withdrew essential safety precautions [citation]." (*Id.* at pp. 976-977 [citations and internal quotations omitted].)

Plaintiff fails to allege a duty of care owed to him by the City. He alleges that the City owed him a duty to reasonably and timely respond to his complaints and that the City breached that duty. There is no special relationship alleged that would take Plaintiff's allegations out of the general rule. For example, Plaintiff does not allege that police officers made misrepresentations that induced Plaintiff's detrimental reliance, put Plaintiff in harm's way, or lulled Plaintiff into a false sense of security and then withdrew essential safety precautions.

Statutory Basis for Liability (Negligence and False Arrest Causes of Action)

The City demurs to both causes of action on the ground that Plaintiff fails to allege a statutory basis for liability. "Except as otherwise provided by statute: (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person. (b) The liability of a public entity established by this part (commencing with Section 814) is subject to any immunity of the public entity provided by statute, including this part, and is subject to any defenses that would be available to the public entity if it were a private person." (Gov. Code § 815.)

The demurrer to the negligence cause of action is sustained on this basis because a public employee cannot be liable for the negligence alleged by Plaintiff. (See (Gov. Code § 845; *Camp*, 184 Cal.App.4th at p. 970.) The demurrer to the false arrest cause of action is also sustained but for a different reason. "Under the doctrine of respondeat superior and Government Code section 815.2, a public entity employer may be held vicariously liable for torts committed by an employee within the scope of employment." (*Juarez v. San Bernardino City Unified School Dist.* (2024) 106 Cal.App.5th 1213, 1220.) This includes claims for false arrest. (*Id.*; *Collins v. City and County of San Francisco* (1975) 50 Cal.App.3d 671, 673-674; Gov. Gov. Code § 820.4 ["A public employee is not liable for his act or omission, exercising due care, in the execution or enforcement of any law. Nothing in this section exonerates a public employee from liability for false arrest or false imprisonment"].) However, Plaintiff does not allege sufficient facts regarding the arrest to survive a demurrer. As noted above, Plaintiff alleges the incorrect date of arrest, and also does not identify the identity of any particular public employee involved or why the arrest was wrongful. Plaintiff is granted leave to amend to include this information.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 9/23/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0010277

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: A. NGUYEN

vs.

DEFENDANT: MARIN GENERAL
HOSPITAL DBA MARINHEALTH
MEDICAL CENTER ET AL.

NATURE OF PROCEEDINGS: DEMURRER

RULING

The Demurrer of defendant David Lincoln Nelson, M.D. (“Dr. Nelson” or “Defendant”) is SUSTAINED, in part, with leave to amend, and in part, without leave to amend.

LEGAL STANDARD

The function of a demurrer is to test the legal sufficiency of the challenged pleading. (*Hernandez v. City of Pomona* (1996) 49 Cal.App.4th 1492, 1497.) As a general rule, in testing a pleading against a demurrer, the facts alleged in the pleading are deemed to be true, however improbable they may be. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Calif.* (1990) 51 Cal.3d 120, 125.)

In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Childs v. State of California* (1983) 144 Cal.App.3d 155, 159.) The face of the complaint includes matters shown in exhibits attached to the complaint and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

DISCUSSION